



FORMAL COMPLAINT OF UNPROFESSIONAL CONDUCT | Lisa Mari – Responsible Pharmacist | Medscheme Holdings (AfroCentric Health) | Patient Safety Suppression | Pharmacy Act s49 | CMS-REQUEST-3

1 message

Wilbur William Matthee <info@ethichawks.co.za>
To: registrar@sapc.co.za, conduct@sapc.co.za
Cc: registrar@sanc.co.za, professionalconduct@sanc.co.za, Legal Med <Legalmed@hpcsa.co.za>
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Mon, 16 Feb 2026 at 14:08

To the Registrar and Professional Conduct Desk
South African Pharmacy Council

I hereby file a formal complaint of unprofessional conduct against Lisa Mari, Responsible Pharmacist and Head of the Strategic Team at Medscheme Holdings (Pty) Ltd, a subsidiary of AfroCentric Health (JSE: ACT).

CORE ALLEGATION IN ONE PARAGRAPH:

Lisa Mari used three-month claim pattern analysis to dismiss a documented structural system integration gap between the Gexus and DMS platforms (GEMS Ref: 000655789) as clinically insignificant, and presented that analysis to the Council for Medical Schemes as a final resolution. This closed an active patient safety investigation without correcting an error that continued generating false non-adherence reports to chronic GEMS patients. As Responsible Pharmacist with direct access to both platforms, she had the statutory duty and professional capacity to investigate the structural cause. She chose a methodology that was structurally incapable of finding it.

TWO STATUTORY BODIES HAVE ALREADY MADE FINDINGS:

- Council for Medical Schemes: formally found 'Administrative Misconduct and Ethical Failure' (CMS-REQUEST-3) and explicitly referred the matter to professional councils for investigation
- South African Human Rights Commission: formally acknowledged the 'seriousness of the allegations'

STATUTORY PROVISIONS ENGAGED:

- Pharmacy Act 53 of 1974 – s49 Unprofessional Conduct
- Good Pharmacy Practice Rules 1.4 and 2.6
- SAPC Ethical Rules Rule 8
- Medical Schemes Act – CMS Act s26 Administrator Duties

I REQUEST THAT SAPC:

- (a) Acknowledge receipt of this complaint within 72 hours
- (b) Assign a formal case reference number and named investigator within 5 business days
- (c) Request system architecture records and data transfer logs from Medscheme Holdings
- (d) Coordinate with the CMS in respect of CMS-REQUEST-3
- (e) Investigate whether the Gexus/DMS gap has been corrected and if not treat it as an ongoing patient safety risk requiring urgent intervention

The formal 10-section complaint document is attached, together with:

- CMS Referral Letter (CMS-REQUEST-3) – finding of Administrative Misconduct and Ethical Failure
- CMS Complaint Form Annexure C3 – Gexus/DMS system gap detail
- SAHRC Response – acknowledgement of seriousness of allegations

This matter being filed before the Labour Court Cape Town (affidavit ready to file), CCMA WECT23564-25 and WECT24486-25 (Certificates of Non-Resolution issued 9 January 2026), SANC (complaint filed 10 February 2026 – Ministerial escalation filed 16 February 2026), JSE Issuer Regulation, B-BBEE Commission (Case No: 05/02/2026), FSCA, and the DEL (integrated inspection authorised 16 February 2026).

Failure to acknowledge within 72 hours will result in escalation to the Minister of Health consistent with the approach taken regarding SANC's administrative inaction.

Yours faithfully,

Sr. Wilbur William Matthee
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EthicHawks Consulting | 16 February 2026

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1. SAPC_Complaint_LisaMari_16Feb2026.docx
2. CMS Referral Letter (CMS-REQUEST-3)
3. CMS Complaint Form – Annexure C3
4. SAHRC Response Letter

5 attachments

-  **Gmail - RE_ Request for Intervention on Procedural and Human Rights Concerns.pdf**
272 KB
-  **Gmail - Automatic reply_ FW_ FW_ Administrator Misconduct, Ethical Failure & Retaliation – Request for Investigation.pdf**
86 KB
-  **Gmail - Administrator Misconduct, Ethical Failure & Retaliation – Request for Investigation(4).PDF**
171 KB
-  **UPDATED-COMPLAINT-FORM-AND-CHECKLIST_APRIL-2024-ft(1).PDF**
243 KB
-  **SAPC_Complaint_LisaMari_16Feb2026-2.pdf**
193 KB